

**\*Revised 11/22/2024 -- FILING MEMORANDUM**  
**FLORIDA PERSONAL CAR POLICY AND ENDORSEMENTS**

Enclosed for filing on behalf of the State Farm Mutual Automobile Insurance Company and the State Farm Fire and Casualty Company is the Personal Car Policy portfolio of forms identified in the Forms Schedule, including declarations, policy booklet, and associated endorsements.

State Farm currently uses a personal car policy that may only be used to insure one described vehicle. This new policy is a multicar policy that will allow us to insure more than one vehicle on the policy as a described vehicle. With the introduction of the forms included in this filing, we will begin using the multi-car policy portfolio in addition to our current personal car portfolio.

The coverage provided to policyholders receiving this Personal Car Policy will be substantially the same as the coverage currently provided. All policy language changes are illustrated in the side-by-side comparison included in this filing as a supporting document.

Following are descriptions of the changes made by the new multicar policy when compared to the current single car policy.

## **I STATE FARM PERSONAL CAR POLICY BOOKLET 9810C**

- We have revised policy language describing how policy notices will be made by changing “mail or deliver” to “provide”. This will allow notice to be given in any manner required or allowed by law.

### **DEFINITIONS**

- We have revised the definitions of the following terms:
  - a. **Temporary Substitute Car** – has been revised to:
    - (1) include a car that replaces a newly acquired car in addition to a car that replaces the described car, and
    - (2) remove the provision stating that a vehicle which qualifies as a temporary substitute car and a non-owned car is only considered a temporary substitute car. The most favorable coverage provided to either will apply.
  - b. **Your car** – Means the car or cars shown in the “VEHICLE SCHEDULE” on the Declarations. Since the new policy is a multi-car policy, we will no longer continue to provide coverage for a car being replaced if it is not described on the Declarations.

### **UNINSURED MOTOR VEHICLE COVERAGES**

#### **1. Limit**

The Limit sections for Uninsured Motor Vehicle Coverage – Stacking and Uninsured Motor Vehicle Coverage – Non Stacking have been changed to clarify how Uninsured Motor Vehicle Coverages may be stacked.

#### **2. Exclusions**

- a. There is no coverage for an insured whose bodily injury is the result of nuclear reaction, radiation, or radioactive contamination from any source.
- b. There is no coverage for an insured for any order of restitution issued by a court in a criminal proceeding or equitable action.

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**PHYSICAL DAMAGE COVERAGES**

- **Additional Definitions**

Daily Rental Charge is replaced with “Daily Transportation Charge”. This provision now includes reimbursement for commercial transportation.

**GENERAL TERMS**

1. Required Out of State Coverage is located in the General Terms and now applies to any required automobile coverage.
2. \*At the request of the Florida OIR, we added a provision to the Nonrenewal and Cancellation sections of the policy specifying we will not terminate the policy, “due to the lawful use, possession, or ownership of a firearm or ammunition by an **insured.**”

**II DECLARATIONS**

Declarations P10110023 FL has been designed to match the language and accommodate the multi-car requirements of the new Personal Car Policy.

**III ENDORSEMENTS**

The endorsements included with this portfolio are the editorial equivalents of currently approved endorsements. All of the endorsements listed, except 2091A Certificate of Guaranteed Renewal, will be used in the State Farm Mutual Automobile Insurance Company and State Farm Fire and Casualty Company. Endorsement 2091A will be used in the State Farm Mutual Automobile Insurance Company only.

- The following endorsements differ from the current approved endorsements by endorsement number only:

|       |                                                            |
|-------|------------------------------------------------------------|
| 2021D | WAIVER OF GOVERNMENTAL IMMUNITY                            |
| 2142D | WAIVER OF SUBROGATION AGAINST THE UNITED STATES OF AMERICA |

- The following endorsements differ from the current approved endorsements editorially to coordinate with the new wording of the Personal Car Policy booklet.

|        |                                                                       |
|--------|-----------------------------------------------------------------------|
| 2023U  | DRIVER EXCLUSION ENDORSEMENT                                          |
| 2028G  | ADDITIONAL INSURED (Prior Notice of Termination)                      |
| 2030AR | ENTITY NAMED INSURED                                                  |
| 2031A  | ANNUAL POLICY PERIOD                                                  |
| 2033M  | USE OF NON-OWNED CARS – COMPREHENSIVE COVERAGE AND COLLISION COVERAGE |
| 2049AC | USE OF NON-OWNED CARS – LIABILITY AND MEDICAL PAYMENTS COVERAGES      |
| 2050AU | NAMED NON-OWNER COVERAGE                                              |
| 2052J  | TRAILER ENDORSEMENT – PHYSICAL DAMAGE COVERAGES                       |
| 2091A  | CERTIFICATE OF GUARANTEED RENEWAL                                     |
| 2097AE | LEASED MOTOR VEHICLES (Lessor as Additional Insured and Loss Payee)   |
| 2171E  | ANTIQUE OR CLASSIC MOTOR VEHICLE (Agreed Value)                       |
| 2196E  | WAIVER OF SUBROGATION UNDER THE LIABILITY COVERAGE                    |
| 2197A  | WAIVER OF SUBROGATION                                                 |
| 2200P  | RENTAL RESTRICTION DELETED                                            |
| 2242AJ | MISCELLANEOUS VEHICLE                                                 |
| 2279AP | MOTORCYCLE COVERAGE                                                   |

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|        |                                     |
|--------|-------------------------------------|
| 2289F  | SINGLE LIMIT LIABILITY COVERAGE     |
| 2835AR | COVERAGE EXTENSION FOR NAMED PERSON |
| 2281A  | FLORIDA NON-CANCELLABLE POLICY      |

- The following endorsements contain revisions beyond editorial changes.

|        |                                                |                                                                                                                                                                                                                                                                        |
|--------|------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 2015AW | TRANSPORTATION NETWORK COMPANY DRIVER COVERAGE | Uninsured and Underinsured Motor Vehicle Coverages will apply to the named insured and resident relatives while occupying a car while the driver is logged on to a transportation network company application.                                                         |
| 2026F  | COVERAGE WHILE CARRYING PERSONS FOR A CHARGE   | Carrying persons for a charge exclusion is deleted under Liability, Medical Payments and Physical Damage Coverages. There is no coverage under Liability, Medical Payments or Physical Damage Coverages while a vehicle logged on to a transportation network company. |